

LINE #	CASE #	CASE TITLE	RULING
<u>LINE 1</u>	22CV399095	Terra Fritch et al vs Universal Protection L.P et al	Hearing: Motion Summary Judgment Tentative ruling will be electronically sent to the parties only, as it contains information filed under seal
<u>LINE 2</u>	22CV403117	LVNV Funding LLC v. Deluna (Class Action)	Motion: Compel Arbitration is GRANTED Click on line 2 for tentative ruling
<u>LINE 3</u>	22CV405334	Hecker v. Mathew Enterprise, Inc. (Class Action)	Motion: Preliminary Approval is GRANTED Click on line 3 for tentative ruling
<u>LINE 4</u>	23CV424597	Cowley v. Apple, Inc.	Hearing: Motion for Reclassification is DENIED Click on line 4 for tentative ruling
<u>LINE 5</u>	24CV431503	Mirza-Aliev v. 800 Moffett MV Manager, LLC (Class Action)	Hearing: Motion for Final Approval is Continued to July 23 to allow parties to file declaration of settlement administrator
<u>LINE 6</u>	24CV433252	Gaspar v. Big T Supermarket, Inc. (Class Action/PAGA)	Motion: Preliminary Approval is GRANTED Click on line 6 for tentative ruling
<u>LINE 7</u>	24CV446330	Haynie v. Google (Defendant Alphabet has been dismissed per stipulation and order)	Hearing: Demurrer is OVERRULED Click on line 7 for tentative ruling
<u>LINE 8</u>	25CV470518	SARINA HALEY et al vs FF PROPERTIES, L.P et al	Motion: Compel Arbitration continued to June 25, CMC continued to same date as well

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Calendar Line 1

Case Name:

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Calendar Line 2

Case Name: *LVNV Funding, LLC v. Robert DeLuna, et al.*

Case No.: 22CV403117

This action is comprised of a collection lawsuit by plaintiff/cross-defendant LVNV Funding LLC (“LVNV”) and putative class action cross-complaint by defendant/cross-complainant Rober DeLuna alleging that LVNV engaged in unfair debt buying practices in violation of the California Fair Debt Buying Practices Act, (Civ. Code, §§ 1788.50-1788.64) (“CFDBPA”).

Before the Court is LVNV’s motion to compel arbitration, which is opposed. As discussed below, the Court GRANTS LVNV’s motion to compel arbitration and GRANTS LVNV’s request to stay the matter.

I. BACKGROUND

According to the allegations of the operative complaint (“Complaint”), filed on August 12, 2022, LVNV is the owner of debt owned by Mr. DeLuna. (Complaint, p. 2, ¶ 10.) In its judicial form complaint, LVNV asserted common counts for open book account, money had and received, money lent by plaintiff to defendant at defendant’s request and money paid, laid out, and expended to or for defendant a defendant’s special instance and request.

On June 30, 2023, Mr. DeLuna filed a putative class action cross-complaint (“Cross-Complaint”) against LVNV asserting a single cause of action for violation of the California Fair Debt Buying Practices Act (“CFDBPA”) codified in Civil Code section 1788.50, et. seq. According to the allegations of the Cross-Complaint, Mr. DeLuna is alleged to have incurred a financial obligation in the form of a consumer credit account issued by WebBank, which is evidenced by an electronic promissory note created and maintained by LendingClub Corporation (“LendingClub”). (Cross-Complaint, ¶¶ 10-11.) The alleged debt and electronic promissory note (the “Note”) were transferred by WebBank to LendingClub within two business days after June 20, 2017. (Cross-Complaint, ¶ 12.)

On information and belief, Mr. DeLuna pleads that the debt and Note were thereafter allegedly transferred to an investor, Golden Caps Trust (“Golden Caps”), for whom LendingClub acted as an agent. (Cross-Complaint, ¶ 13.) LendingClub received the last payment on the alleged debt on December 2, 2019, with no further payments made after that point. (Cross-Complaint, ¶ 14.)

On July 31, 2019, Golden Caps removed the alleged debt from its books as an asset and treated the alleged debt as a loss or expense, and as a result as the “charge-off creditor at the time of charge off” within the meaning of Civil Code section 1788.58, subdivision (a)(6), and the alleged debt was thereafter a “charged-off consumer debt” within the meaning of Civil Code section 1788.50, subdivision (a)(2). (Cross-Complaint, ¶ 15.)

Mr. DeLuna alleges that on April 30, 2020, the alleged debt was sold or resold to LVNV for collection purposes, but possession or control of the Note was never transferred to it. (Cross-Complaint, ¶ 16.) On August 12, 2022, LVNV filed the underlying Complaint in an attempt to collect on the alleged debt. (Cross-Complaint, ¶ 18.) Mr. DeLuna alleges that